

10. The Sellers will have the option to deliver sub-standards or lower grade yarn, if buyer agree, in place of the first grade or any other grade yarn. Price of sub-standards or lower grade yarn shall be mutually agreed price. Further, the buyer shall not claim about quality and price in respect of such sub-standard or lower grade yarn once agree.
11. In case of goods dispatched by rail or any other transport agency, the date of the railway receipt or receipt obtain for any such transport agency in respect of the consignment shall be deemed to be the date of delivery. In all other case the delivery date shall be the date on which the goods leave the Seller warehouse/Seller factory/Seller/godown.

III. QUANTITY

12. The goods sold under this invoice are strictly on understanding that the Sellers invoice WEIGHT is final.

IV. COPS

13. Normally the goods will be supplied by the Seller to the Buyer on Paper tubes & sometimes on cops, unless otherwise specified in the delivery order and / or invoice. It is a specific condition of the sale that the Buyer shall return the cops to the Sellers at the place of delivery of goods i.e. either at the factory site at Pune godown or godown at the up-country centers, if any in case the Sellers have a godown at any such centre for delivery of goods. It is also a specific condition that such return of cops shall be effected as aforesaid within a period of 45 (Forty Five) days from the date of delivery goods, time being the essence of the transaction and that the cops shall be returned in good condition and to the entire satisfaction of the Seller. If the Buyers fail to return the cops within 90 days of delivery, the Buyers shall be liable to pay on demand to the Sellers liquidated damage calculated at the market value of the cops prevailing on the date of demand as determined by the Sellers based on prevailing company's policy in this regard including tax, if any, or a sum of Rs 10/- whichever is higher. The decision of seller shall be final, conclusive, and binding on the Buyers.
14. In the event of the buyer returning the cops otherwise then in good condition and to the satisfaction of the Sellers. The Buyer shall be liable to pay equal to the value of the loss or damage caused to the cops for any reason whatsoever. The value of such loss or damage to be determined by the Sellers, whose decision shall be final, conclusive, and binding on the Buyers.

V. BEAMS

15. Beams pivots are the property of Sellers. They are returnable altogether by the Buyer within 7 days from the date of invoice. All expenses regarding damage to the beam pivot will be recoverable from the Buyer.